

reasons of self-interest or malice. See, Feinman and Cohen, *supra*, pp. 210-219.

The unquestioning importation to the colonies of such precedents lifted from the early English law without benefit of such exceptions has caused a substantial distortion in the development of the American law, which effectively adopted the rule but without its exceptions.

More importantly, the application of such early English cases to the law of the United States totally ignores the varying SOURCE of power of the judiciary under the two forms of government. Such difference was alluded to by Justice Douglas tangentially in Pierson v. Ray, 386 U.S. 547, 565, n. 5 (1967). Appellants assert that such difference in source of power is not a tangential reason, but rather a direct one for the most compelling of reasons. Such reason was addressed by Justice Miller in 1882 in *United States v. Lee*, (106 U.S. 171, 177)(cited in *Butz v. Economou*) where the issue before the Court was the right to possession of land and title derived from tax sale, and the question arose as to whether the United States or a State could be sued as an entity.

"But little weight can be given to the decisions of the English courts on this branch of the subject, for two reasons:

1. [not relevant here].
2. Another reason, of much greater weight, is found in the vast difference in the essential character of the two governments as regards the source and depositories of power.

Notwithstanding the progress which has been made since the days of the Stuarts in stripping the Crown of its powers and prerogatives, it remains true to-day that the monarch is looked upon with too much reverence to be subjected to the demands of the law, as ordinary persons are, and the king-loving Nation would be shocked at the spectacle of their Queen being turned